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File No.: EXP202207865

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 13/06/2022, a document was submitted to this Agency by the COLEGIO PROFESIONAL PSICÓLOGOS CASTILLA Y LEON (hereinafter, the claimant), in which a complaint is made against CANDIDATURA COPCYL (hereinafter, the respondent), for a possible breach of the provisions of the personal data protection regulations.

The reasons for the complaint are as follows:

“As a Professional College representing the members, as well as in defense of their rights, given the multiple complaints presented by them, we wish to report the following facts: The candidacy that was not elected in the elections of last year 2020, specifically in the month of September, and therefore having passed the electoral propaganda period, continues to send communications to the members, repeatedly and up to this very moment.

Already in 2018, according to the attached email (titled XXXXXXXX collection of endorsements from members), they contacted the members via their email addresses, which caused widespread discomfort among them, as it is not electoral propaganda, but requests for endorsements, surprising them and still not knowing where they obtained the data. Therefore, we request an investigation into under what legitimacy these communications are being made, why the right to unsubscribe from them is not granted, how they obtained the data, and all those irregular issues that this Agency may interpret, since upon reviewing the provided website, we do not find compliance with several provisions of the data protection legislation such as the duty to inform in various questionnaires or the risk that the website is not secure.”

Along with the complaint, the following documentation is provided:

- Copy of the emails signed by the respondent:

- o On 02/05/2018 at 7:30 AM, from the email address ***EMAIL.1, with the subject: "Member: DO NOT be deceived: YES there are CANDIDACIES (and Alternative)".
- o On 28/01/2021 at 7:34 PM, from the email address ***EMAIL.2, with the subject: "COPCyL News".
- o On 24/02/2021 at 11:50 PM, from the email address ***EMAIL.2, with the subject: "Day of our Patron".
- o On 26/06/2021 at 5:54 PM, from the email address ***EMAIL.2, with the subject: "and now... what?".
- o On 30/12/2021 at 1:59 AM, from the email address ***EMAIL.2, with the subject: "Happy 2022".
- o On 02/06/2022 at 9:55 PM, from the email address ***EMAIL.3, to a member, with the subject: "They do not represent us".

SECOND: This Agency accessed, on one hand, the website ***URL.1, proving the existence of a Privacy Policy; and, on the other hand, the Facebook profile of the respondent.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 15/07/2022, this complaint was forwarded to the respondent, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 25/07/2022 as stated in the receipt that is part of the file.

On 16/08/2022, a document was received in this Agency submitted by Ms. A.A.A., whose heading is “Alternative Candidacy to COPCYL 2020”, stating the following:

“[...]

1.- CANDIDATURA COPCYL was constituted, within the Professional College of Psychology of Castilla y León (COPCyL), as a candidacy formed by different professional members, with the aim of

participating in the elections for the Governing Board of COPCyL and has been formed by different people throughout its existence.

2.- This candidacy currently does not exist as such. (...)

4.- This candidacy has exercised its right to inform about content related to the profession of psychology or the electoral process of said college (including the request for endorsements) among those affiliated with it, both members and non-members. To do this, it has generically used the website

***URL.1/ and

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various social networks, as well as the sending of emails to individuals for whom this information was available due to affinity or personal or professional relationships. In any case, information was never sent to individuals who indicated that they did not wish to receive it. (...)

6.- In most of the emails sent, recipients were informed that if they did not wish to receive information, they should indicate so, and information would automatically cease to be sent.

7.- The person appearing in the annexes who claims to have received emails never expressed to this candidacy their desire not to receive communications.

[...]"

FOURTH: On 18/08/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FIFTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) On 26/09/2022, a diligence carried out by this Agency was incorporated into the inspection proceedings, in which the Personal Data Protection Policy of the party being complained against was verified.

2) On 23/12/2022, a diligence carried out by this Agency was incorporated into the investigation proceedings, in which it was stated that, on 26/09/2022 and 23/12/2022, the party being complained against was requested by email, ***EMAIL.1, for information; without having received a response by that day.

3) On 10/06/2023, this Agency received a document submitted by Ms. A.A.A., in which the closing statement reads "Candidacy Copyl," in which the following is stated:

- The candidacy was constituted as a candidacy formed by different professionals with the aim of participating in the elections for the Governing Board of the College of Psychology of Castilla y León and has been formed by different individuals throughout its existence. It was not a requirement to have a CIF or corporate name of the candidacy to run for the elections.

- This candidacy has been active from 2018 until May 2022 due to several electoral calls made by the College of Psychologists of Castilla y León to elect the Governing Board. These elections were annulled judicially due to a complaint from Candidacy Copcyl, re-called, annulled by the college itself, and finally called and resolved with irregularities, according to Candidacy Copcyl, which generated judicial actions that concluded in May 2022 with a ruling against the interests of Candidacy Copcyl. This is the reason why there were communications with supporters and endorsers throughout this process.

- To exercise its right to collect endorsements and disseminate its program, Candidacy Copcyl requested the College of Psychologists of Castilla y León for the email addresses of the members, which it refused to provide. Therefore, Candidacy Copcyl never had in its possession a data file of members, as the College did not provide it.

- Currently, Candidacy Copcyl does not exist. Such candidacy, to exercise its legitimate right to inform like-minded individuals about content related to the profession, the electoral process, request

endorsements, or communicate the irregularities that were occurring, was forced to use a rudimentary system. For this purpose, a generic website, a newsletter, and various social networks were used, as well as the sending of emails to individuals for whom this information was available due to affinity or personal or professional relationships, being the origin of such emails.

- The emails were provided by professionals or were found in public sources such as professional contact emails. The sending of information was carried out to professional members with whom the candidacy and sympathetic individuals maintained relationships of affinity, personal, or professional relationships.
- For these communications, only the minimum indispensable data was used, namely the email, never surnames or other personal information. Information was never sent to individuals who indicated that they did not wish to receive it, and the option to not receive further communications was provided, with messages such as "To change your subscription, click here," "Unsubscribe" as stated in the documentation provided by the complainant.
- The candidacy did not have a database, so it is not possible to report the number of individuals for whom the email address was available. Since this was not a professional activity, there are also no records of these mailings. At this time, there is not even a domain that hosted the website.
- They reiterate that at no time did this candidacy have a file of personal data of members from Castilla y León and at no time were "mass" communications sent to all members.

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- The purpose for which the emails were processed was solely to promote the official candidacy for the College of Psychologists. The emails have not been transferred to any third party, nor has any profit been obtained from them.
- Finally, the representatives of the candidacy indicate that the person providing the emails (B.B.B.) and the person to whom they are sent (C.C.C.) were members of the other candidacy and, in turn, a member and dean, respectively, of the Governing Board of the College of Psychologists that called for those elections. The complainant never communicated their desire not to receive information; rather, they collected emails for 5 years, from May 2018 to May 2022, for a subsequent complaint.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to issue this resolution.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Legality of the processing of personal data

The principles governing the processing are enumerated in Article 5 of the GDPR. In this regard, paragraph 1 letter a) states: "Personal data shall be:

a) Processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, and transparency);

(...)"

The principle of lawfulness is primarily regulated in Article 6 of the GDPR. The circumstances that allow for the lawful processing of personal data are listed in Article 6.1 of the GDPR:

1. Processing shall be lawful only if at least one of the following conditions is met:

a) the data subject has given consent to the processing of their personal data for one or more specific

purposes;

b) the processing is necessary for the performance of a contract to which the data subject is party or for the implementation at the request of the data subject of pre-contractual measures;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.”

In this regard, Recital 40 of the GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or by virtue of other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or for the purpose of taking steps at the request of the data subject prior to entering into a contract.”

III

Conclusion

The complaint highlights the sending of emails to members by the responding party outside the electoral period, despite the candidacy not being elected in the elections held in September 2020.

Furthermore, it is unclear how personal data of the members was obtained, and there is a noted breach of current regulations on the responding party's website regarding the duty to inform.

For its part, the responding candidacy states that it has been active since 2018 until May 2022 after several electoral calls, as the elections were annulled judicially and subsequently by the College itself; until they concluded in May 2022 with a ruling against the responding party. During that period, it acknowledges having sent emails with information to individuals whose data...

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personal were known due to affinity or personal or professional relationship; but never to those who had indicated their desire not to receive such communications.

First of all, it should be noted that Article 6.1 of the GDPR does not only provide for the consent of the affected party as the sole legal basis legitimizing the processing of personal data. Therefore, there are other grounds that ensure that such processing is carried out legally.

Upon examining the documentation in the administrative file, it is evident that several emails were sent to a member, B.B.B., from different email addresses that would belong to the responding party (***EMAIL.1, ***EMAIL.2, and ***EMAIL.3) containing informational/promotional content, coinciding with the time period during which it was active. In this regard, it should be noted that half of the emails provided by the complainant include the option to not receive further communications, with messages such as “To change your subscription, click here” or “You are receiving this email because you subscribed to our newsletter. Unsubscribe.” Furthermore, prior to the admission of the complaint for processing, this Agency accessed the website, ***URL.1, proving the existence of a Privacy Policy that informed about the mechanisms provided for exercising the rights of, among others, opposition.

However, the complainant has not provided any documentation that proves the exercise of the corresponding right by the affected member to terminate the processing of her personal data, nor the

irregularities she claims regarding the website.

In addition to the above, it should be taken into account that the responding party has been inactive since May 2022, that is, before the filing of the complaint and, consequently, before the admission of the complaint for processing; coinciding with the last email provided by the complainant, dated 29/05/2022. Moreover, it has been verified that currently their website directs to a page that does not exist.

Therefore, it is appropriate to archive the proceedings, without prejudice to the Agency applying the investigative and corrective powers it holds, being able to carry out subsequent actions related to the data processing referred to in the complaint.

In accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to CANDIDATURA COPCYL and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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